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File No.: EXP202300615

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (*hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection on January 2, 2023. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons for the complaint are as follows:

“(…) that he is a neighbor of a property adjacent to the respective properties of the respondents and that they have surveillance cameras on their properties, which are clearly oriented towards the claimant's property, without having authorized such image capture (…)”

He provides reports filed with the Civil Guard and a statement made in court regarding the claimed facts, as well as images of the location of the cameras and the affected areas (Annex I).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent on 01/02/23 and 24/03/23, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations. The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on 09/02/23 by the respondent without any response to this agency. The forwarding was reiterated on 24/03/23, recorded as received at the assigned address on 30/03/23, with no response provided regarding the legality of the system in question.

THIRD: On April 2, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FOURTH: On June 22, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.c) and 13 of the GDPR, classified in Article 83.5 of the GDPR.

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FIFTH: On July 6, 2023, the instructor of the procedure decided to carry out the following evidence: Reiterate the clarification of the facts by providing the required documentation so that it can be analyzed by this agency.

SIXTH: On July 7, 2023, a copy of the Order from the Court of Instruction No. 2 (Santa Cruz de Tenerife) was submitted, where the provisional dismissal was agreed upon as it could not be proven “that the cameras are capable of capturing non-consented images” obtained from the complainant's private space.

SEVENTH: Upon consulting the database of this Agency on August 2, 2023, no documentation has been submitted, nor has any additional explanation regarding the facts been provided.

EIGHTH: On August 2, 2023, a was issued in which the infringement of Articles 5 and 13 of the GDPR is considered proven, as the respondent did not credibly demonstrate the legality of the system, proposing a sanction amounting to €600.

NINTH: On August 14, 2023, a new written statement of allegations was received from the respondent through their legal representative, Ms. C.C.C. (Lawyer, Tenerife Bar No. XXXX), emphasizing that in

the report from the Civil Guard, no camera is oriented towards the complainant's property.

TENTH: On September 1, 2023, a new written statement from the respondent was received, in which the following is stated:

"It has been demonstrated by the report of the Civil Guard that none of the cameras are on Mr. A.A.A.'s property and that they do not focus on his home; they are presented with photographs, with dates, as well as signs informing that there are cameras placed and focusing on the property of Ms. D.D.D., given that she and her husband live alone and are elderly."

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

First. The facts arise from the complaint dated 01/02/23, through which the following is conveyed to this Agency:

"(...) that he is a neighbor of a property adjacent to the respective properties of the respondents and that they have surveillance cameras on their properties, which are clearly oriented towards the claimant's property, without having authorized such image capture (...)"

Second. It is established that B.B.B., with NIF ***NIF.1, is the main responsible party for the installation.

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Third. It is noted that the same facts were analyzed in judicial proceedings at the Court of Instruction No. 2 (Santa Cruz de Tenerife) under Procedure No. ***PROCEDURE.1.

"From the proceedings carried out, it is not possible to conclude that the reported cameras are capable, due to their location and field of view, of capturing unauthorized images obtained from a private space of the complainant, therefore it can be concluded that the evidence does not seem to adequately justify the commission of the crime against privacy that has led to the formation of the case (...) it is appropriate to decree the provisional dismissal of the proceedings."

Fourth. A document dated 14/08/23 is submitted containing photographs of the installed signs, where it is observed that none inform about the responsible party for the processing or the way to exercise the rights, aside from lacking a capture date.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

Following the modifications made to the current LOPDGDD (LO 3/2018, December 5) by Law 11/2023, of May 8, transposing European Union directives regarding the accessibility of certain products and services, migration of highly qualified persons, taxation, and digitalization of notarial and registry actions; and which modifies Law 12/2011, of May 27, on civil liability for nuclear damage or damage caused by radioactive materials, the procedural deadline established in Article 64.2 "in fine" is applied to the present procedure.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the proceedings will be archived.

II

In this case, the complaint dated 02/01/23 is examined, through which the main fact presented is the presence of video surveillance cameras that could affect the rights protected by data protection regulations.

Documentary evidence is provided showing the presence of image capture devices in the brush area, without a priori assessing the orientation, although the complainant's statements emphasize the impact on private space.

Article 5.1 c) of the GDPR states the following: Personal data shall be:

“adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ('data minimization').”

It should be noted that individuals are responsible for ensuring that the installed systems comply with current legislation, proving that they meet all the requirements imposed by the applicable regulations. The installation of such devices must have the mandatory informative sign, indicating the purposes and the responsible party for the processing of personal data, if applicable.

In any case, the cameras must be oriented towards private space, avoiding intimidating neighboring residents with such devices, as well as monitoring transit areas without justified cause.

Moreover, with such devices, images of public space cannot be obtained, as this is the exclusive competence of the State Security Forces and Corps, under the terms of the current LO 4/1997, August 4, which regulates the use of video cameras by the Security Forces and Corps in public places.

It is worth noting that even in the case of a "simulated" camera, it must be preferably oriented towards private space, as it is considered that such devices can affect the privacy of third parties, who feel intimidated by it under the belief of being subject to permanent recording.

Individuals cannot install devices for obtaining images of public space and/or transit of third parties, except in cases permitted by the regulations.

The purpose of such devices must be the security of the property and its inhabitants, avoiding the infringement of the rights of third parties who may feel intimidated by them.

The cameras must be limited to the protection of the property owned by the individual in such a way that they do not affect the area of third parties who may feel intimidated by them, as it affects their area of free transit.

III

In the present sanctioning procedure, the complainant considers that there are a series of devices on the nearby property that may be poorly oriented,

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considering themselves intimidated by the same, as they believed it could affect their nearby private land.

The responding party submits an Order of from the Court of Instruction No. 2 (Tenerife) dated

***DATE.1, which states the following:

“...a video surveillance camera installed in an avocado tree had no other purpose, in the opinion of the Civil Guard agents who went to the site, than to observe the residents of the complainant's home.

Subsequently, this Court requested (...) which concluded that the complainant's patio area could not be recorded from the fixed camera installed in the avocado tree, and that the only option to record the main patio would be to change the installation of the device.”

This body considers that the “appraisals” of the State Security Forces and Corps are sufficient to establish that at the time the device in question was deployed, it was not affecting the area of the respondent.

The mere observation of any type of device does not, in principle, constitute data processing, beyond the fact that given the proximity of the properties, they can be observed effortlessly from the complainant's property.

Article 77, section 5 of Law 39/2015 (October 1) states:

“5. The documents formalized by officials recognized as authorities, which, observing the

corresponding legal requirements, record the facts established by them, shall serve as proof of these facts unless proven otherwise" (*the bold text belongs to this AEPD).

The presumption of innocence applies without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanction, whether criminal or administrative (TCo 13/1981), as the exercise of the sanctioning right in any of its manifestations is conditioned by the evidence and a contradictory procedure in which the parties can defend their positions.

According to this principle, no sanction can be imposed based on the culpability of the accused if there is no incriminating evidence that, in the assessment of the authorities or bodies called to resolve, destroys this presumption (TCo Order 3-12-81).

IV

In accordance with the above, although the photographs provided regarding the signs do not prove the "data controller" and are of poor clarity, considering that the cameras only capture the interior of the respondent's private property, the placement of the signs is not necessary as it is .

Owners of private properties have the freedom to install security cameras on their private property, as long as they adhere to the limits of their property or, in the case of affecting external limits, indicate in any case in a legal manner that it is a .

However, it is always advisable that the signs (if any) comply with current regulations, indicating the data controller, the purpose, and the manner of exercising the respective rights, being necessary in the case that the cameras capture the minimum essential external space.

V

According to the above, it can be concluded that the installed cameras do not affect the scope of the complainant's private property, without any explanation having been given regarding the camera at the top of the avocado tree, this body considering the analysis carried out by the State Security Forces and Corps dispatched to the scene sufficient, as well as the fact that no data processing of the complainant or any third party has been proven.

However, it is considered that the installation of a camera at the top of a tree is not the most suitable location, due to the ease of changing the orientation of its capture angle, and the fact that observation by third parties may lead to new complaints, being advisable in the opinion of this body a better location for it.

The rest of the issues arising from the poor neighborly relationship between the parties are outside the scope of this body and should be resolved, if necessary, in the appropriate judicial instances.

Therefore, in accordance with the applicable legislation,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ORDER the ARCHIVING of this procedure as no administrative infringement has been proven in the matter at hand.

SECOND: TO NOTIFY this resolution to B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party

expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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